

2 March 2020

Site at 1-8 Capitol Way

in the London Borough of Brent

planning application no. 19/4545

Strategic planning application stage 1 referral

Town & Country Planning Act 1990 (as amended); Greater London Authority Acts 1999 and 2007; Town & Country Planning (Mayor of London) Order 2008.

The proposal

Redevelopment of the site for mixed use development to provide 4,051sq.m. of flexible commercial floorspace (B1(a), (b) and (c), B8, D2 and A3) and 501 residential units including a mix of studio, 1, 2, 3 and 4-bedroom units with associated basement car parking and cycle storage.

The applicant

The applicant is **NEAT Developments** and **Royal London Asset Management** and the architect is **Dunnett Craven Architects**.

Strategic issues

Principle of development: The principle of the re-development of this site for residential led mixed-use development with a proportion of suitable replacement industrial floorspace is supported given the extant consent for similar land uses. The industrial use of Building F should be secured (paragraphs 17 to 23).

Housing and affordable housing: 501 units are proposed, representing an uplift of 87 units compared to the previous consent. 36% affordable housing is proposed, which does not meet the 50% Fast Track Route requirement for this industrial site. The applicant's Financial Viability Assessment is undergoing robust assessment to ensure that the maximum contribution is secured (paragraphs 24 to 30).

Design: The approach to the building height, massing and scale is supported and the design is of a good quality. The design of the industrial floorspace and the annexe site floorspace is suitably designed to meet industrial user requirements (paragraphs 36 to 46)

Sustainable development: Further work is required and evidence submitted in relation to energy, flood risk and green infrastructure (paragraphs 49 to 54).

Transport: The application is broadly supported in strategic planning terms. Contributions and conditions are required (paragraphs 56-60).

Recommendation: That Brent Council be advised that whilst the principle of development is supported the application does not fully comply with the London Plan, for the reasons set out in paragraph 64 of this report; but that the possible remedies set out in that paragraph of this report could address these deficiencies.

Context

1 On 8 January 2020 the Mayor of London received documents from Brent Council notifying him of a planning application of potential strategic importance to develop the above site for the above uses. Under the provisions of The Town & Country Planning (Mayor of London) Order 2008, the Mayor must provide the Council with a statement setting out whether he considers that the application complies with the London Plan, and his reasons for taking that view. The Mayor may also provide other comments. This report sets out information for the Mayor's use in deciding what decision to make.

2 The application is referable under Categories 1A.1 and 1C(c) of the Schedule to the Order 2008:

1A.1 'Development which comprises or includes the provision of more than 150 houses, flats or houses and flats.'

1C(c) 'Development which comprises or includes the erection of a building that is more than 30 metres high and is outside the City of London.'

3 Once the Council has resolved to determine the application, it is required to refer it back to the Mayor for his decision as to whether to direct refusal; take it over for his own determination; or allow the Council to determine it itself.

4 The Mayor of London's statement on this case will be made available on the GLA website www.london.gov.uk.

Site description

5 The site is approximately 1.7 hectare in size and is part of Capitol Way industrial estate. The site is 'L' shaped and consists of two detached areas (referred to as the 'main site' and the 'satellite site'), separated by Capitol Way. The 1.56 hectare main site is the northern plot and is covered predominantly by a single storey warehouse (B8 use), with attached administrative building, which has been vacant for over 5 years. The satellite site is located to the south of the main site and consists of a bituminous bound area of hard standing and a vegetated bank with existing trees that runs along the eastern side of Stag Lane.

6 The Capitol Way industrial estate forms part of the Colindale Locally Significant Industrial Site (LSIS) as designated within Brent Council's Core Strategy. A number of sites on the edge of the estate fronting on to Edgware Road have recently undergone redevelopment for mixed use residential/commercial development. These sites include the Oriental City site, approximately 300 metres to the south east of the site, and the TNQ development on Capitol Way to the east.

7 The site is within the Colindale/Burnt Oak Opportunity Area. The nearest designated heritage asset is the Roe Green Conservation Area, which begins approximately 140 metres south of the site on the western side of Stag Lane.

8 The nearest section of the Transport for London Road Network (TLRN) is the Watford Way/A41, located approximately 2.2 kilometres to the east of the site and the nearest section of the Strategic Road Network (SRN) is Edgware Road/A5, located approximately 300 metres to the east. The nearest London Underground station is

Burnt Oak, 900 metres north of the site, which is served by the Northern line. The Public Transport Access Level (PTAL) of the site is rated at 2 (on a scale where 1a is the lowest and 6b the highest). Two bus routes currently directly serve the site from a stop on adjacent Stag Lane, one of which TfL will re-route onto Capitol Way and onwards to join Edgware Road.

Details of the proposal

9 The application proposes the redevelopment of the site for mixed use development to provide 4,051sq.m. of flexible commercial floorspace (B1(a), (b) and (c), B8, D2 and A3) and 501 residential units including a mix of studio, 1, 2, 3 and 4-bedroom units with associated basement car parking and cycle storage.

10 The proposal seeks to make amendments to the extant planning permission referred to in paragraph 14 below, to provide additional floors on Blocks B, C, D and E and reconfigure the internal layout to several of the blocks.

11 The additional floorspace would deliver a further 67 new residential units compared to the extant consent, comprising the following to each block:

- Block B: one additional floor providing 12 flats
- Block C: one additional floor providing 11 flats
- Block D: one additional floor providing 14 flats
- Block E: three additional floors providing 30 flats.

12 The internal layout of blocks C, D, E and G would also be optimised to provide an additional 20 residential units. The revised proposal would result in the creation of 87 new homes. It also reduces the number of car parking spaces.

Case history

13 A pre-application meeting was held on the 20 August 2019 and a pre-application report was issued on the 27 September 2019. The report supported the principle of development and increase in residential units, subject to the optimal provision of industrial floorspace, affordable housing and the achievement of good design.

14 Planning permission was granted on this site in 2018 (LPA ref.17/0837, GLA reference GLA/3932/02) for the demolition of the existing buildings and redevelopment of the site to provide 6 buildings ranging between 4 to 9 storeys and 8 three storey mews houses and the erection of a 2 storey commercial building, providing a total of 4,051sq.m. of flexible commercial floorspace (B1(a), (b) and (c), B8, D2 and A3) across the site and 414 residential units.

Strategic planning issues and relevant policies and guidance

15 For the purposes of Section 38(6) of the Planning and Compulsory Purchase Act 2004, the development plan in force for the area is Brent Local Plan (2010), and the London Plan 2016 (The Spatial Development Strategy for London Consolidated with Alterations since 2011).

16 The following are relevant material considerations:

- The National Planning Policy Framework and National Planning Practice Guidance.
- The Mayor's intend to publish London Plan (December 2019), which should be taken into account on the basis explained in the NPPF.
- Affordable Housing and Viability Supplementary Planning Guidance, August 2017.
- Brent's draft Local Plan 2018 Publication Stage.

17 The relevant issues and corresponding policies are as follows:

- | | |
|---------------------------|--|
| • Employment/Industry | <i>London Plan;</i> |
| • Housing | <i>London Plan; Housing SPG; Housing Strategy; Shaping Neighbourhoods: Play and Informal Recreation SPG;</i> |
| • Affordable housing | <i>London Plan; Affordable Housing & Viability SPG;</i> |
| • Urban design | <i>London Plan; Character and Context SPG;</i> |
| • Inclusive access | <i>London Plan; Accessible London SPG;</i> |
| • Sustainable development | <i>London Plan; Sustainable Design and Construction SPG; Mayor's Environment Strategy;</i> |
| • Transport | <i>London Plan; the Mayor's Transport Strategy.</i> |

Principle of development

18 The site is designated as a Locally Significant Industrial Site (LSIS). It has also been granted planning permission for 414 residential units and the provision of a total of 4,051sq.m. of flexible commercial floorspace (B1(a), (b) and (c), B8, D2 and A3). This permission is extant and capable of being implemented.

Industrial land

19 London Plan Policy 4.4 seeks to manage industrial land and premises. The Mayor's intend to publish London Plan identifies a significant loss of industrial land to other uses between 2001 and 2015, well in excess of monitoring benchmarks in the current London Plan, and a positive net demand for industrial land is expected in the 2016-2041 period. Brent is identified under Policy E4 of the Mayor's intend to publish London Plan as a borough that is required to provide industrial capacity. The Mayor's intend to publish London Plan Policy E4 states that the retention, enhancement and provision of additional industrial capacity on industrial land should be planned, monitored and managed to ensure that in overall terms across London there is no net loss of industrial floorspace capacity within designated SIL and LSIS. The Mayor's intend to publish London Plan Policy E7 encourages the intensification and colocation of industrial land as part of a plan-led process of SIL or LSIS intensification and consolidation (and the areas affected clearly defined in Development Plan policies maps) or as part of a co-ordinated masterplanning process in collaboration with the GLA and relevant borough.

20 Brent Council is currently reviewing its draft Local Plan, which includes a review of its Site Allocations. The site is part of Allocated Site BNSA1 Capitol Way Valley, which requires *mixed use development comprising areas of employment*

intensification, and co-location with other uses on the site. The site allocation states that *until a masterplan for the site has been agreed/adopted by the Council, no redevelopments (apart from 17/0837) will be permitted in this area.* As addressed earlier in this report, planning permission 17/0837 relates to the application for 1-8 Capitol Way, which received planning consent for the provision of a total of 4,051 sq.m. of flexible commercial floorspace (b1(a), (b) and (c), B8, D2 and A3) and 414 residential units.

21 Given the extant planning permission for mixed use development, which is a material consideration in this instance, and the plan-led approach to industrial land management in Brent Council's draft Local Plan outlined above, the proposed intensification of consented planning application 17/0837 to deliver an additional 67 homes is supported in principle as it would contribute towards the delivery of London's housing requirements and the Council's minimum housing target in line with London Plan Policy 3.3 and the Mayor's intend to publish London Plan Policy H1.

22 Notwithstanding the above, as the site is on industrial land protected by the London Plan and considering that the Mayor's intend to publish London Plan has gained weight since the previous application was approved, it is therefore expected that the new planning application for the site responds positively to the aims of the industrial land policies of the Mayor's intend to publish London Plan, by securing a minimum amount of B1c floorspace on site to contribute towards the re-provision of industrial floorspace capacity required by the Mayor's intend to publish London Plan Policy E4.

23 The proposals maintain the level of employment floorspace in the consented scheme and has further developed the satellite Block F as an industrial development. In doing this, it has ensured that the Block F building design is genuinely designed to meet the operational requirements of industrial end users (Classes B1c, B2 and B8) and functional yard space is provided that meets the need of industrial uses. This is welcomed, and the Council should ensure that the use of this floorspace is secured by appropriate condition/obligation as Class B1c, B2 or B8 use only (and cannot be used as B1a or other non-industrial uses).

Conclusion

24 The principle of the intensification of the site is supported and the applicant has demonstrated that the provision of industrial floorspace capacity has been increased and designed so it can genuinely be used by industrial occupants. Notwithstanding this, a minimum amount of B1c floorspace should be secured by condition/obligation.

Housing

Affordable housing

25 London Plan Policies 3.11 and 3.12 and the Mayor's intend to publish London Plan Policy H5 and Policy H6 seek to maximise the delivery of affordable housing and set a strategic target of 50% across London. The Affordable Housing and Viability Supplementary Planning Guidance (SPG) sets out the Mayor's preferred approach to the delivery of affordable housing and introduces a threshold approach to viability. The threshold level of affordable housing is formalised in the Mayor's intend to

publish London Plan policies H5 and H6 at a minimum of 35% or 50% on industrial land suitable for residential uses where the scheme would result in a net loss of industrial capacity. Schemes that meet or exceed the relevant threshold level of affordable housing without public subsidy and meet the GLA preferred tenure split are eligible for a Fast Track Route, which does not require supporting viability information or a late stage review mechanism. Schemes that do not meet these requirements must follow the Viability Tested Route, which requires detailed supporting viability evidence to be submitted in a standardised and accessible format as part of any planning applications.

26 The GLA preferred tenure mix is outlined in Policy H7 of the Mayor's intend to publish London Plan as at least 30% low cost rent (social rent or London affordable rent), at least 30% intermediate (London Living Rent or shared ownership) and the remaining 40% as determined by the local planning authority. Brent's draft Local Plan preferred tenure split is 40% Social Rent/London Affordable Rent; 30% Social Rent/London Affordable Rent and 30% intermediate products.

Table 1: Proposed housing mix:

	Affordable Rent HR (units)	Shared Ownership HR (units)	Market HR (units)	Total (HR)	Total units	Unit mix %
Studio	0 (0)	0 (0)	67(67)	67	67	
1 Bed	4 (2)	42 (21)	320 (160)	500	250	44.0
2 Bed	57 (19)	141 (47)	159 (82)	44	148	26.1
3 Bed	125 (25)	90 (18)	48 (52)	475	95	16.7
4 Bed	48 (8)	0 (0)	0 (0)	48	8	1.4
Total HR	234	273	893	1,400	568	88
Total % HR	16.7	19.5	63.8			
Total Affordable HR	36		64			
Total Units	54	86	361			
Total % Units	10	15	64			
Total affordable units	28		72			

27 It is proposed that 501 units be delivered on this site with 36% affordable housing by habitable room and a tenure split of 46% affordable rent and 54% shared ownership. The consented application delivered 30% by habitable room with a 50% affordable rent and 50% intermediate shared ownership tenure split.

28 The proposal will result in a net loss of industrial floorspace capacity. Whilst the increase in affordable housing compared to the consented scheme is welcomed, the 36% affordable housing provision does not meet the 50% affordable housing threshold required to follow the Fast Track Route for this site. As such, the applicant has submitted a Financial Viability Assessment (FVA). This is undergoing robust assessment by GLA officers, working in partnership with the applicant, the Council and its independent assessors, to ensure that the maximum contribution is secured in

accordance with Policy 3.12 of the London Plan, the Mayor's Affordable Housing and Viability SPG, and Policies H5 and H6 of the Mayor's intend to publish London Plan. Should it be confirmed that less than 50% affordable housing is currently viable, an early stage and late stage viability review mechanism must be secured in accordance with Policy H5 of the intend to publish London Plan.

29 In addition to maximising the delivery of affordable housing, the Mayor's intend to publish London Plan Policy H4 expects all schemes to make the most efficient use of available resources. The applicant should explain whether the use of grant to increase the level of affordable housing above the thresholds offered has been explored and that whether it has engaged with a registered provider and the GLA housing team in exploring possible grant evaluability.

30 With regards to the applicant's proposed tenure, to be policy compliant, the applicant will have to demonstrate that the proposed products are genuinely affordable in accordance with the Mayor's qualifying income levels, as set out in the Mayor's Affordable Housing and Viability SPG and the London Plan Annual Monitoring Report. The applicant should also confirm that the proposed affordable rent product will be provided as London Affordable Rent. Affordability thresholds for all tenures will need to be secured in the section 106 agreement attached to any permission.

31 Brent Council is required to publish the financial viability assessment including any review, in accordance with the Affordable Housing SPG and Policy H6 of the Mayor's intend to publish London Plan to ensure transparency of information.

Housing mix

32 London Plan Policy 3.8 and the Mayor's intend to publish London Plan H12 promote a range of unit sizes in new developments. Brent's draft Local Plan seeks to deliver a target of 25% of new homes as family sized bedrooms. It is noted that as a result of the intensification of the scheme the proportion of family housing would be reduced from 25% (3 beds only) to 21% (3 and 4 beds) but 50% of 3 and 4 bed units would be affordable homes.

33 The proposed range of 1, 2, 3 and 4 bed dwellings is welcomed and the provision of 50% family affordable housing is supported, subject to Brent Council confirming that the proposed housing mix meets the housing needs of the borough.

Children's play space

34 Children and young people need free, inclusive, accessible and safe spaces offering high-quality play and informal recreation opportunities in child-friendly neighbourhood environments. London Plan Policy 3.6 and Policy S4 of the Mayor's intend to publish London Plan seek to ensure that development proposals include suitable provision for play and recreation, and incorporate good-quality, accessible play provision for all ages, of at least 10 sq.m. per child, with further detail in the Mayor's 'Shaping Neighbourhoods: Play and Informal Recreation' SPG.

35 The applicant has calculated the child yield and play space requirement for the development and set out a play strategy. On site play provision facilities are directed to ages 0-11 years with 530 sq.m. provided for under 5s and 480 sq.m. provided for

5-11 year olds. The play spaces are located in courtyards A, B and C and a good variety of facilities are proposed. The development therefore complies with the SPG for play space provision for 0-11 year olds. In accordance with Policy S4, it must be confirmed that playspace will not be segregated by tenure and this must be secured by appropriate condition.

Table 2: Child and play space requirement

	Child Yield	Requirement
Under 5	53	530
5-11 years	43	480
12+	33	330
	134	1,010

36 The SPG enables consideration of use of off-site provision of play area facilities for children. For children aged 12 the applicant has identified, facilities within an 800 metres walking distance at Grove Park (400 metres zone) and Montrose Playing fields, Silk Stream Park, Eton Grove and Roe Green Park also lie within 800 m of the development. The applicant has agreed to discuss with Brent Council a financial contribution and an appropriate contribution should be secured.

Design

37 The design principles in Chapter 7 of the London Plan and Chapter 3 of the Mayor's intend to publish London Plan place expectations on all developments to achieve a high standard of design which responds to local character, enhances the public realm and includes architecture of the highest quality that defines the area and makes a positive contribution to the streetscape and cityscape.

Height, massing and scale

38 The stepped heights profile of the consented scheme is maintained and the additional height would be concentrated at the eastern end of the main site, increasing building height from nine storeys to twelve storeys. Although this change in height will make the building more prominent, it is however noted that recent taller consented schemes have come forward in vicinity of the site with Park Parade Mansion (17/2284) including an 18 storey building and Imperial House on the Edgware Road (Barnet (19/2897/FUL)) proposing a part 16 storey tower. This change to the building height and scale relationship is acceptable in strategic terms.

Layout and residential quality

39 The overall layout and massing principles are supported and are consistent with the consented scheme. It is noted that block E would be moved 5 metres to the east to maintain the consented levels of daylight and sunlight to the courtyard. This adjustment still leaves 15 metres between block E and the neighbouring industrial units and is supported.

40 The reconfigured residential layouts maintain efficient unit per core ratios with naturally lit /ventilated cores which is welcomed. All units have been designed to

meet the space standards set out in the Mayor's Housing SPG and the Nationally Prescribed Space standards. All units would be provided with an area of private amenity space which meets the amenity space requirements as set out in the Mayor's Housing SPG. Many of the units would be dual-aspect units and no single-aspect north facing units would be provided. Generally, there would be five to seven units per core which complies with the standards within the Housing SPG, although in Block A, 14 units would be accessed from a single core at first floor level. However, this is mitigated with a secure entrance to the corridor on each side of the access core.

41 The applicant has carried out internal daylight and sunlight assessments for the units which demonstrate broad compliance with recommended guidelines. The quality of the proposed residential units within the scheme is generally good, and in compliance with the Mayor's Housing SPG standards. It has ensured that the residential units are not adversely affected by noise, vibration or odour/poor air quality due to the co-location of the commercial uses on the site and adjacent industrial uses within the LSIS. Adequate insulation and air quality management techniques should be incorporated into the design of the proposals and robustly secured by condition.

42 The Mayor's intend to publish London Plan Policy D12 Agent of Change requires development to manage noise from existing noise-generating uses in a sensitive manner when new development, particularly residential is proposed nearby. The Agent of Change principles set out in the Mayor's intend to publish London Plan Policy D12 will apply and details of the makeup of the building fabric to demonstrate noise/air quality mitigation are required.

43 The development layout, massing and detailing of the residential uses have been designed to minimise the impact of industrial and business activity. The proposed row of mews houses and the northern perimeter block act as a buffer across the northern boundary of the site facing southwards toward the main site and away from the commercial units along Carlisle Road. The courtyards are enclosed within and between the residential blocks which ensure quiet sheltered amenity spaces for occupants. The proposed employment uses all front onto Capitol Way Trading Estate which will reinforce the activity and character of this part of the estate as a location for predominately local and small businesses.

44 In the detailed design of the residential units, sound insulation mitigation in the form of high specification glazing and facade material will be adopted to prevent disturbance and potential noise complaints from future residents. These mitigation measures should be secured by planning condition.

Industrial floorspace

45 The applicant has demonstrated that the proposed industrial floorspace on the satellite site (Block F) has been genuinely designed to meet the needs of industrial users. Design features include wider door openings, goods lifts, increased ceiling heights to 4 metres and suitable turning circles. It has ensured that the proposed industrial floorspace meets the end users requirements in terms of the structure of the units (unit size, division of the units, floor to ceiling heights, structural columns/spans, floor loadings), the provision and usability of the yard space (yard depth, car parking, yard space frontage), fit out, ancillary space and management. These specifications

should be secured by planning condition to ensure the provision of genuine industrial floorspace.

Fire Safety

46 In line with policy D12 of the Mayor's intend to publish London Plan, development proposals must achieve the highest standards of fire safety and ensure that they are designed to incorporate appropriate features which reduce the risk to life in the event of a fire; are constructed in an appropriate way to minimise the risk of fire spread; provide suitable and convenient means of escape for all building users; adopt a robust strategy for evacuation which all building users can have confidence in and provide suitable access and equipment for firefighting which is appropriate for the size and use of the development.

47 The applicant is as such required to submit a Fire Statement by a third party suitably qualified assessor. The statement should detail how the development proposal will function in terms of: the building's construction; the means of escape; access for fire service personnel and equipment, and the ongoing maintenance and monitoring of these how provision will be made within the site to enable fire appliances to gain access to the building. The Fire Statement should be submitted prior to determination.

Inclusive access

48 London Plan Policy 7.2 and policy D4 of the Mayor's intend to publish London Plan require that all new development achieves the highest standard of accessible and inclusive design. These policies seek to ensure that all new development can be used easily and with dignity by all.

49 London Plan Policy 3.8 and policy D5 of the Mayor's intend to publish London Plan require that 10% of new housing is delivered as designed to be wheelchair accessible and that the remaining 90% are easily adaptable for residents who are wheelchair users. The scheme proposes that 10% of units across the development, comprising a mix of unit sizes will be delivered as wheelchair user dwellings, the remaining units will be delivered to Building Regulation M4(2) specifications.

Sustainable development

50 Detailed energy, flood risk and green infrastructure comments have been provided to the applicant and borough under separate cover.

Energy

51 The applicant has submitted an energy assessment in accordance with London Plan Policy 5.2 and the Mayor's intend to publish London Plan Policy SI2. The energy strategy does not meet energy efficiency targets set in the Mayor's intend to publish London Plan and the applicant should therefore model additional energy efficiency measures and aspire to meet the domestic and non-domestic targets. The applicant should also carry out further work and provide information in relation to overheating, connection to district heating network, the site wider heating network and the proposed photo voltaic panels and air source heat pumps.

52 Once all options have been explored, the applicant should confirm that £322,823 (or less if further efficiency savings are achieved) will be paid into Brent Council's offset fund, equivalent to 179 tonnes of carbon dioxide per annum; evidence of correspondence with the borough confirming this should be provided and offset payment secured in the s106 agreement.

Flood risk

53 The approach to flood risk management for the proposed development complies with London Plan policy 5.12 and the Mayor's intend to publish London Plan policy SI.12. The surface water drainage strategy for the proposed development also complies with London Plan policy 5.13 and the Mayor's intend to publish London Plan policy SI.13. As this application is mainly a change in building height and unit numbers based on an existing approved application, there is minimal change from the consented scheme and the same conditions should be adopted for this revised application.

Green infrastructure

54 In accordance with Policy G5 of the draft New London Plan, the proposed development should calculate and provide its Urban Greening Factor (UGF) score and meet the minimum specified target of 0.4. A drawing showing the surface cover types and accompanying UGF calculation should be submitted before Stage 2 submission.

Air quality

55 The proposed development has been assessed as being air quality neutral and it is concluded that there are no significant air quality effects and the air quality assessment is compliant with London Plan Policy 7.14B(c) and the Mayor's intend to publish London Plan SI 1 (B) (2a). Notwithstanding this, the applicant should provide further information regarding dust emissions and car trip rates for the air quality neutral assessment. It should also agree to proposed conditions relating to Non-Road Mobile Machinery Low Emission Zone for London, measures to control dust emissions and air quality impacts heating and hot water plant.

Transport

56 The proposal involves a large reduction in the size of the previously proposed basement resulting in a reduction in residential car parking spaces from 254 as consented to 114. This reduction from the consented ratio of 0.6 (spaces per unit) to 0.2 spaces per unit is welcomed and in line with the Mayor's aspirations for a shift away from car-borne trips. The residential parking includes 52 Blue Badge residents' parking spaces, equating to 10% provision.

57 The applicant has re-committed to providing a contribution to the Council's costs of implementing a CPZ in the area to support the necessary legal agreement to restrict future residents from obtaining on-street parking permits. The previous s106 secured £200,000, and it should be confirmed what the revised contribution will be.

58 A total of 855 cycle parking space would be provided. It should be confirmed that this complies with the intend to publish London Plan, and that all cycle parking will be provided in accordance with the London Cycle Design Standards, incorporating a proportion of Sheffield stands for long-term parking and visitor cycle

parking all with Sheffield stands. Detailed plans should be submitted showing the access route that cyclists will take from the street to their cycle storage.

59 TfL is planning a major upgrade scheme for Colindale station. Work on the station is due to commence in summer/autumn 2020 and will provide step free access alongside increased capacity and circulation to cater for growth in the Colindale area. The Transport Assessment acknowledges the need for this station capacity upgrade. TfL is seeking a proportionate contribution towards the station scheme, based on the additional number of trips generated. The station caters for 2,230 (2017) weekday AM and PM peak only trips. This is forecast to increase to 8,770 by 2041. The current forecast uplift is 3,540. The development is forecast to generate 188 LU peak trips (5% of this uplift). Assuming a funding requirement of around £2m, a contribution of £106,000 is expected to ensure timely delivery of this scheme in line with draft London Plan policy T4. TfL would welcome further discussion about the content and timing of any contribution.

60 In addition to the highway improvement works secured in the consented application, the applicant should as before contribute £30,000 towards new/relocated bus stops, secured within the s106 agreement. There is sufficient bus capacity to meet the added demand likely to be generated from the uplift from the consented scheme.

61 As with the consented scheme, a detailed Delivery and Servicing Plan and Construction and Logistics Plan should be secured by condition.

Local planning authority's position

62 Brent Council officers are still assessing the scheme and a date has not yet been set for committee.

Legal considerations

63 Under the arrangements set out in Article 4 of the Town and Country Planning (Mayor of London) Order 2008 the Mayor is required to provide the local planning authority with a statement setting out whether he considers that the application complies with the London Plan, and his reasons for taking that view. Unless notified otherwise by the Mayor, the Council must consult the Mayor again under Article 5 of the Order if it subsequently resolves to make a draft decision on the application, in order that the Mayor may decide whether to allow the draft decision to proceed unchanged, or direct the Council under Article 6 of the Order to refuse the application, or issue a direction under Article 7 of the Order that he is to act as the local planning authority for the purpose of determining the application (the next bit is optional) and any connected application. There is no obligation at this present stage for the Mayor to indicate his intentions regarding a possible direction, and no such decision should be inferred from the Mayor's statement and comments.

Financial considerations

64 There are no financial considerations at this stage.

Conclusion

65 London Plan policies on industrial land, affordable housing, design, inclusive design, sustainable development and transport are all relevant to this application. Having regard to these policies the application complies with some of these policies but not with others as per the schedule below:

- **Principle of development:** The principle of the re-development of this site for residential led mixed-use development with a proportion of suitable replacement industrial floorspace is supported given the extant consent for similar land uses. The industrial use of Building F should be secured.
- **Housing and affordable housing:** 501 units are proposed, representing an uplift of 87 units compared to the previous consent. 36% affordable housing is proposed, which does not meet the 50% Fast Track Route requirement for this industrial site. The applicant's Financial Viability Assessment is undergoing robust assessment to ensure that the maximum contribution is secured in accordance with the London Plan, the Mayor's Affordable Housing and Viability SPG, and the Mayor's intend to publish London Plan.
- **Design:** The approach to the building height, massing and scale is supported and the design is of a good quality. The design of the industrial floorspace and the annexe site floorspace is suitably designed to meet industrial user requirements.
- **Inclusive design:** The detailed development has been designed to be fully accessible to all users
- **Sustainable development:** Further work is required and evidence submitted in relation to energy, flood risk and green infrastructure
- **Transport:** The proposals are broadly supported in strategic transport terms. Contributions towards public transport capacity and conditions are required.

for further information, contact GLA Planning Unit (Development & Projects Team):

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